

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/9/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL0002346

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: ROBERT VIRAMONTES

and

RESPONDENT: KALEY CLONEY

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – CHILD CUSTODY/VISITATION

RULING

This matter is before the Court following Respondent/Mother's May 22, 2026, *ex parte* Request for Order (RFO) for custody and visitation regarding the parties' children, Camden (DOB: 06/28/2018) and Hudson (DOB: 04/07/2020). Mother requested joint legal and physical custody.

On May 22, 2026, the court granted temporary sole legal/physical custody to Mother. On May 29, 2026, the court continued temporary sole custody to Mother and awarded Father non-professional supervised visits on Tuesdays and Thursdays 3 p.m. – 6 p.m. and Sundays 1 p.m. – 4 p.m., with the parties stipulating to Amira Mostafa as the non-professional supervisor. The court also ordered SoberLink testing for Father, and communication via Our Family Wizard. The parties stipulated to Father attending extracurricular activities and end-of-the-school-year activities during Mother's time, with advance notice beforehand to Mother. Father was ordered to complete the FCS intake form.

The parties were referred to Marin Family Court Services for mediation, counseling, and recommendations. On June 30, 2026, following interviews with both parties, FCS submitted its report. Recommendations were made, including maintaining the timeshare schedule already in place.

Father submitted a statement of disagreement with the FCS recommendations providing additional evidence supporting his claims of continued sobriety.

The Court finds good cause and that it is in the best interest of the minor children, Camden (DOB: 06/28/2018) and Hudson (DOB: 04/07/2020), to adopt the recommendations of FCS, as set forth in its report issued on June 30, 2026, as modified by the Court, as follows:

The current orders shall remain in effect with the following additions/modifications:

Parental Responsibilities

1. The parents shall share joint legal custody of both children. The parents shall share in the responsibility and confer in good faith on matters concerning the children's health, education and welfare. Both parents shall have access to the children's school, medical, mental health, and dental records and the right to consult with professionals who are providing services to the children.
2. Kaley shall continue to have temporary physical custody of both children.

Timeshare

3. Robert's visits with the boys shall continue to be supervised as currently ordered. The parties shall meet and confer to come to an agreement on mutually acceptable nonprofessional supervisors. If the parents are not able to agree on supervisors, then the visits shall be supervised by a professional. Parties will share in the cost of professional supervisors on a 50/50 basis.

Collateral Issues

4. Kaley shall consume alcohol only very moderately while the boys are in her care.
5. Both parents shall have a valid driver's license and insurance if they are going to drive with the children.
6. The parties shall return to Court January 7, 2027, for a status report as to compliance with the terms of this Order.

Counsel for Mother to prepare the formal Findings and Order After Hearing.

Parties must comply with Marin County Superior Court Local Rules, Rule 7.12(B), (C), which provide that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 7.12(C), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department B. For routine appearances, the parties may access Department B for video conference via a link on the court website. Litigants in the virtual courtroom are required to leave the video screen on and wait for your case to be called.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing. If the connection is inadequate, the Court may proceed with the hearing in the party's absence.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/9/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL0002727

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: MOHAMED TAKFAOUI	
and	
RESPONDENT: MAIRA CAROLINA MARTINEZ DE PAZ	

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – RECONSIDERATION

RULING

Respondent/ Mother filed a motion for reconsideration on May 20, 2026. Mother requests that the Court reconsider the Findings and Order After Hearing (FOAH) entered May 14, 2026, which adopted recommendations offered by Marin Family Court Services (FCS) in its report of May 7, 2026.

Mother did not attend the interview with FCS. Moreover, Mother did not file a responsive declaration to the original Request for Order (RFO) filed by Petitioner/ Father on April 24, 2026. Father’s RFO sought sole legal custody and joint physical custody.

This Court’s FOAH adopted the FCS recommendation that Mother “should be compelled to participate in the FCS process so more information can be provided, and Samara’s needs can be considered more thoroughly.”

Accordingly, the Court (1) re-refers this matter to FCS and (2) ORDERS Mother to participate in interviews with FCS.

This matter will be continued for further consideration by this Court to August 20, 2026, at 9:00 am.

All existing orders relating to custody and visitation shall remain in effect.

SO ORDERED.

Parties must comply with Marin County Superior Court Local Rules, Rule 7.12(B), (C), which provide that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing.